

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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MARK HOLT,

Plaintiff,

-against-

SUMMONSPOLICE OFFICER TIFFANY HALLIDAY, Shield No.
6892, and POLICE OFFICERS JOHN DOES # 1-4 (names
and number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates New York
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 7, 2016

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER TIFFANY HALLIDAY, Shield No. 6892, Transit Bureau District #2,
West Broadway/Lispenard St., New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

MARK HOLT,

Plaintiff,

-against-

POLICE OFFICER TIFFANY HALLIDAY, Shield No. 6892, and POLICE OFFICERS JOHN DOES # 1-4 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff MARK HOLT, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 7, 2013, at approximately 2:00 p.m., plaintiff Mark Holt, while lawfully inside of the subway station located at 8th Avenue and 34th Street, New York, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Thereafter, plaintiff was maliciously prosecuted and denied the right to a fair trial in New York County Criminal Court until all criminal charges brought against plaintiff were dismissed by motion of the District Attorney's Office on February 20, 2014. Plaintiff was deprived of his constitutional when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff MARK HOLT is a resident of the state of New York.

3. POLICE OFFICER TIFFANY HALLIDAY, Shield No. 6892, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER TIFFANY HALLIDAY, Shield No. 6892 is and was at all times relevant herein, assigned to Transit Bureau District #2 precinct.

5. POLICE OFFICER TIFFANY HALLIDAY, Shield No. 6892, is being sued in her individual and official capacity.

6. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. Police Officers John Does #1-4 are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

10. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

11. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

12. On October 7, 2013, at approximately 2:00 p.m. plaintiff was unlawfully stopped, questioned, frisked, searched, seized, handcuffed, falsely arrested and falsely imprisoned, maliciously prosecuted, and denied the Fifth Amendment Right to Due Process, without reasonable suspicion, probable cause or legal justification, by the individually named police officer defendants.

13. Specifically, on October 7, 2013, at approximately 2:00 p.m., plaintiff was lawfully inside of the subway station located at 8th Avenue and 34th Street, NY, NY, when the individually named defendant police officers unlawfully approached, stopped, questioned, frisked, and search plaintiff.

14. Plaintiff lawfully entered the subway station and lawfully entered the subway system through the turnstile.

15. At no point in time had plaintiff committed a crime, nor could any reasonable police officer believe he committed a crime.

16. While plaintiff was standing on the subway platform, without legal justification or probable cause, the defendant police officers approached plaintiff and asked for his identification.

17. Plaintiff complied and provided the defendant police officers with his identification.

18. Thereafter, the defendant police officers told plaintiff to turn around and unlawfully handcuffed plaintiff and arrested him without legal justification or probable cause.

19. Plaintiff was falsely arrested and imprisoned by the defendant police officers without legal justification or probable cause.

20. Plaintiff was transported by the defendant police officers to a Transit District precinct.

21. Upon arrival to the transit district precinct, plaintiff was photographed, fingerprinted, and placed in a holding cell.

22. Thereafter, on or about October 7, 2013, plaintiff was transported to Manhattan Central Booking.

23. On October 8, 2013, after approximately 24 hours in custody, plaintiff was arraigned in Manhattan Criminal Court and was released on his own recognizance.

24. Plaintiff was falsely charged with Unlawful Solicitation in the Subway.

25. The defendant police officers maliciously initiated the prosecution against plaintiff by providing the DA's Office with false, misleading, and incomplete information regarding the facts that formed the officers' basis for arresting plaintiff.

26. After the defendant police officers falsely arrested plaintiff, on October 7, 2013, they charged plaintiff with crimes they had no basis to allege he committed and maliciously prosecuted him.

27. The criminal prosecution of plaintiff was maliciously initiated without probable cause by New York City Police Officers, on October 7, 2013, when the police officers forwarded false, misleading, and/or incomplete information and/or evidence to the Manhattan District Attorney's Office as an explanation for why they allegedly had probable cause to arrest and prosecute plaintiff.

28. At no time did the police officers have any legal justification or probable cause to believe plaintiff had committed any crime.

29. Nevertheless, plaintiff was handcuffed and falsely placed under arrest.

30. Further, the defendant police officers signed and executed a criminal court complaint that contained false, misleading and incomplete information and/or evidence under oath and under the risk of a penalty of perjury.

31. As a result of the false charges initiated by the defendant police officers, plaintiff was forced to appear in Court on approximately 4 occasions before all charges were dismissed on February 20, 2014.

32. As a result of the malicious prosecution against plaintiff, plaintiff experienced pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation.

33. At no time did the officers have probable cause or any legal justification to allege plaintiff committed a crime, nor did they possess any objective facts to indicate plaintiff committed a crime.

34. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of a fair trial, and use of excessive force against plaintiff.

35. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process by the individually named defendants caused plaintiff to sustain serious psychological and emotional trauma, including post-traumatic stress disorder.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

37. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

38. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

40. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

41. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

44. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

46. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

47. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

48. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

53. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

54. Defendants lacked probable cause to search plaintiff.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

60. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

61. Defendants commenced and continued a criminal proceeding against plaintiff.

62. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

63. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

64. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein

69. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Manhattan District Attorney's Office.

70. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Manhattan District Attorney's Office.

71. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Manhattan District Attorney's Office.

72. In withholding/creating false evidence against plaintiff Mark Holt, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

73. As a result of the foregoing, plaintiff Mark Holt, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

76. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

78. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

79. Defendants failed to intervene to prevent the unlawful conduct described herein.

80. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

81. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

85. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Mark Holt demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 7, 2016

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER TIFFANY HALLIDAY, Shield No. 6892, Transit Bureau District #2,
West Broadway/Lispenard St., New York, New York

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 7, 2016

/s/
STUART E. JACOBS